

24STCV18194 24STCV18194

County: los-angeles

Division: Civil Law and Motion

Department: 730

Hearing date: 2026-09-15

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Case Number: 24STCV18194 Hearing Date: September 15, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

MYUNG

SOOK CHUN,

Plaintiff,

vs.

JAY

KIM, et al.,

Defendants

Case No.:

24STCV18194

Hearing

Date:

September 15, 2026

ORDER
GRANTING UNOPPOSED MOTION TO BE
RELIEVED AS COUNSEL

I. BACKGROUND

Defendant Jay Kim ("Kim"), assisted by all other named defendants, allegedly accessed Plaintiff Myung Sook Chun's ("Chun") computer to copy confidential and personal financial information for Defendants' personal gain. Plaintiffs sued Defendants for conversion, invasion of privacy, and intentional infliction of emotional distress.

On July 13, 2026, Defendant Gotssom, Inc.'s ("Gottsom") attorney, Harold Jung, filed this instant motion to be relieved as counsel for Gottsom.

No opposition has been filed to date.

II. LEGAL STANDARD

A

(Motion to Be Relieved as Counsel) requires (1) notice of motion and motion to be directed to the client (made on the Notice of Motion and Motion to be Relieved as Counsel—Civil form (MC-051)); (2) a declaration stating in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1) (made on the Declaration in Support of Attorney's Motion to Be Relieved as Counsel—Civil form (MC-052)); (3) service of the notice of motion and motion and declaration on all other parties who have appeared in the case; and (4) the proposed order relieving counsel (prepared on the Order Granting Attorney's Motion to Be Relieved as Counsel—Civil form (MC-053)).

The

court has discretion to allow an attorney to withdraw, and such a motion should be granted provided that there is no prejudice to the client, and it does not disrupt the orderly process of justice. (Ramirez v. Sturdevant (1994) 21 Cal.App.4th 904, 915.)

III. DISCUSSION

Counsel submitted completed MC-051, MC-052 and MC-053 forms in compliance with the California Rules of Court rule 3.1362 requirements.

Counsel submitted a declaration stating that there has been irreconcilable breakdown in the attorney-client relationship (MC-052, ¶ 2.) Counsel asserts counsel served Gottsom at its last known address via mail with return receipt requested. (MC-052 ¶ 3(a)(2) and (b)(2)(a).) Counsel relied upon return receipt, calling Gottsom's last known telephone number, and conducting a search via Secretary of State filings, to confirm the address. (MC-052 ¶ b(2)(a-d).

Counsel served all parties who have appeared in this action, including Gottsom, with this motion.

There is no indication of undue prejudice to Gottsom from the Court granting this motion. Trial is set for February; Gottsom has sufficient time to find new counsel, if Gottsom wishes, and prepare for trial.

IV. CONCLUSION

Gottsom's Counsel's Motion to Be Relieved as Counsel is therefore GRANTED. Counsel will be relieved upon filing proof of service upon the client of the Order Granting Attorney's Motion to Be Relieved as Counsel--Civil (Judicial Council form MC-053).

Counsel is ordered to give notice.

DATED:

September 15, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer

after reading this tentative ruling to see if they can reach an agreement.

- If a party intends to submit on this

tentative ruling, the party must send an email to the court at SMCDEPT730@lacourt.org with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

- Unless all parties submit by email to this

tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

- If the parties neither submit nor appear at

hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.